

SCHICK v. REED, CHAIRMAN, UNITED STATES
BOARD OF PAROLE, ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE DISTRICT OF COLUMBIA CIRCUIT

No. 73-5677. Argued October 23, 1974—Decided December 23, 1974

Petitioner, sentenced to death, under Art. 118 of the Uniform Code of Military Justice, by a court-martial for murder, attacked the validity of a Presidential commutation to life imprisonment (under which petitioner had served 20 years) conditioned on petitioner's never being paroled. The District Court granted respondents' motion for summary judgment. The Court of Appeals affirmed, additionally rejecting petitioner's contention that this Court's intervening decision in *Furman v. Georgia*, 408 U. S. 238, required that petitioner be resentedenced to a life term with the possibility of parole, the alternative punishment for murder under Art. 118. *Held*: The conditional commutation of petitioner's death sentence was within the President's powers under Art. II, § 2, cl. 1, of the Constitution to "grant Reprieves and Pardons for Offenses against the United States." Pp. 260-268.

(a) The executive pardoning power under the Constitution, which has consistently adhered to the English common-law practice, historically included the power to commute sentences on conditions not specifically authorized by statute. *United States v. Wilson*, 7 Pet. 150; *Ex parte Wells*, 18 How. 307. Pp. 260-266.

(b) Since the pardoning power derives from the Constitution alone, it cannot be modified, abridged, or diminished by any statute, including Art. 118, and *Furman v. Georgia*, *supra*, did not affect the conditional commutation of petitioner's sentence. Pp. 266-268.

157 U. S. App. D. C. 263, 483 F. 2d 1266, affirmed.

BURGER, C. J., delivered the opinion of the Court, in which STEWART, WHITE, BLACKMUN, POWELL, and REHNQUIST, JJ., joined. MARSHALL, J., filed a dissenting opinion, in which DOUGLAS and BRENNAN, JJ., joined, *post*, p. 268.

Homer E. Moyer, Jr., argued the cause for petitioner *pro hac vice*. With him on the briefs was *Robert N. Saylor*.